

§ 302.3. Venue. 1. Juvenile delinquency proceedings shall be originated in the county in which the act or acts referred to in the petition allegedly occurred. For purposes of determining venue, article twenty of the criminal procedure law shall apply.

2. Upon motion of the respondent or the appropriate presentment agency the family court in which the proceedings have been originated may order, for good cause shown, that the proceeding be transferred to another county. If the order is issued after motion by the presentment agency, the court may impose such conditions as it deems equitable and appropriate to ensure that the transfer does not subject the respondent to an unreasonable burden in making his defense.

3. Any motion made pursuant to subdivision two by the respondent shall be made within the time prescribed by section 332.2. Any such motion by a presentment agency must be based upon papers stating the ground therefor and must be made within thirty days from the date that the action was originated unless such time is extended for good cause shown.

4. Except for designated felony act petitions, after entering a finding pursuant to subdivision one of section 345.1, and prior to the commencement of the dispositional hearing the court may, in its discretion and for good cause shown, order that the proceeding be transferred to the county in which the respondent resides. The court shall not order such a transfer, however, unless it grants the respondent and the presentment agency an opportunity to state on the record whether each approves or disapproves of such a transfer and the reasons therefor. The court shall take into consideration the provisions of subdivisions two and three of section 340.2 in determining such transfer.